

COMMITTEE ON APPROPRIATIONS, TRANSPORTATION AND TECHNOLOGY
SENATE AMENDMENTS TO H.B. 2165
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 41-511.05, Arizona Revised Statutes, is amended
3 to read:

4 41-511.05. Powers; compensation

5 The board, subject to legislative budgetary control within the
6 limitations of this article, may:

7 1. Subject to chapter 4, article 4 and, as applicable, article 5 of
8 this title, employ, determine conditions of employment and specify the
9 duties of such administrative, secretarial and clerical workers and
10 technical employees such as naturalists, archaeologists, landscape
11 architects, rangers, park supervisors, caretakers, guides, skilled
12 tradesmen, laborers, historians and engineers, and contract to have the
13 services of such advisors or consultants as are reasonably necessary or
14 desirable to enable it to perform adequately its duties. The compensation
15 of the director and of all workers and employees shall be as determined
16 pursuant to section 38-611.

17 2. Make such contracts, leases and agreements and incur such
18 obligations as are reasonably necessary or desirable within the general
19 scope of its activities and operations to enable it to perform adequately
20 its duties.

21 3. Acquire through purchase, lease, agreement, donation, grant,
22 bequest or otherwise real and personal property and acquire real property
23 through eminent domain for state park or monument purposes. Property may
24 not be acquired in the manner provided in this paragraph that will require
25 an expenditure in excess of funds budgeted or received for such
26 purposes. A state park or monument, or additions to a state park or
27 monument, may not be created containing in excess of one hundred sixty
28 acres of land unless created by an act of the legislature. This acreage
29 limitation does not apply in the case of lands given or donated for state

1 park or monument purposes or to state owned lands that are selected by the
2 board and that are not subject to outstanding leases, permits or other
3 rights for the use of the lands including preferential rights to renew
4 such leases and permits.

5 4. Sell, lease, exchange or otherwise dispose of real and personal
6 property. Any disposition of real property shall be submitted for
7 approval of the joint committee on capital review. The disposition of
8 office equipment, furnishings, vehicles and other materials is subject to
9 chapter 23, article 8 of this title. The disposition of artifacts and
10 other property of scientific, archaeological, historical or sociological
11 interest is exempt from chapter 23, article 8 of this title, but the board
12 shall consult with the Arizona historical society in disposing of property
13 of historical interest.

14 5. Construct at state parks and monuments necessary sanitary and
15 other facilities including picnic tables, fireplaces, campsites, service
16 buildings and maintenance shops, and contract with private persons for the
17 construction and operation of cabins, hotels and restaurants, and like
18 establishments.

19 6. Erect suitable signs and markers at parks and monuments and
20 write, prepare and publish written materials describing the historical
21 significance of monuments and other places of historical or other
22 significance.

23 7. Solicit and work in cooperation with the department of
24 transportation and the highway departments of various counties and the
25 United States federal highway administration for necessary roads and
26 trails within the state parks and monuments and access roads to state
27 parks and monuments. For the purposes of this paragraph, the board may
28 designate roads, spurs and other traffic related appurtenances within
29 state park boundaries as public highways. Designation of roads, spurs or
30 other traffic related appurtenances as public highways does not prohibit
31 the board from closing such public highways when the park is closed,
32 charging for admission to the park to persons using the public highway
33 within the park or otherwise managing such public highways in the same
34 manner as other lands within the park.

35 8. Levy and collect reasonable fees or other charges for the use of
36 such privileges and conveniences as may be provided under the jurisdiction
37 of the board. The board may enter into agreements ~~for the purpose of~~
38 ~~accepting~~ TO ACCEPT payment for fees or other charges imposed pursuant to
39 this article by alternative payment methods, including credit cards,
40 charge cards, debit cards and electronic funds transfers. The collecting
41 officer shall deduct any fee charged or withheld by a company providing
42 the alternative payment method under an agreement with the board before
43 the revenues are transferred to the board. A PERSON WHO IS A [RETIRED]
44 VETERAN OR [A MEMBER OF THE UNITED STATES MILITARY, THE NATIONAL GUARD OR
45 A RESERVE UNIT IN THIS STATE] [A VETERAN WITH A SERVICE-CONNECTED

1 ~~DISABILITY OR A RETIRED MEMBER OF THE NATIONAL GUARD OR A MEMBER OF THE~~
2 ~~NATIONAL GUARD WITH A SERVICE-CONNECTED DISABILITY]~~ IS EXEMPT FROM
3 ADMISSION FEES FOR ALL STATE PARKS. THE EXEMPTION INCLUDES ALL PASSENGERS
4 IN THE SAME PERSONAL VEHICLE AS THE VETERAN ~~[OR MEMBER]~~ FOR SITES THAT
5 CHARGE PER VEHICLE OR THE VETERAN ~~[OR MEMBER]~~ AND UP TO THREE PEOPLE FOR
6 SITES THAT CHARGE PER PERSON. THE VETERAN ~~[OR MEMBER]~~ MUST PRESENT ~~[THEIR~~
7 ~~MILITARY IDENTIFICATION CARD,]~~ ~~[THE VETERAN'S OR MEMBER'S]~~ DRIVER LICENSE
8 WITH ~~[VETERANS]~~ ~~[VETERAN]~~ DESIGNATION OR ~~[VETERANS ADMINISTRATION]~~
9 ~~[VETERAN]~~ IDENTIFICATION CARD TO BE EXEMPT FROM ANY ADMISSION FEES.

10 9. Make reasonable rules for the protection of, and maintain and
11 keep the peace in, state parks and monuments. Such rules adopted by the
12 parks board are subject to review and approval by the legislature. After
13 a board rule has been finally adopted pursuant to chapter 6 of this title,
14 the board shall immediately forward a certified copy of the rule to the
15 legislature. The legislature may review and, by concurrent resolution,
16 approve, disapprove or modify such rule. However, such rule shall be
17 given full force and effect pending legislative review. If a concurrent
18 resolution is not passed by the legislature with respect to the rule
19 within one year following receipt of a certified copy of the rule, the
20 rule is deemed to have been approved by the legislature. If the
21 legislature disapproves a rule or a section of a rule, the board shall
22 immediately discontinue the use of any procedure, action or proceeding
23 authorized or required by the rule or section of the rule. If the
24 legislature modifies a rule or section of a rule, the board shall
25 immediately suspend the use of any procedure, action or proceeding
26 authorized or required by the rule or section of the rule until the
27 modified rule has been adopted in accordance with chapter 6 of this title,
28 after which all proceedings pursuant to the rule shall be conducted in
29 accordance with the modified version of the rule.

30 10. Furnish advisory services to city and county park or recreation
31 boards and organizations.

32 11. Delegate to the director, the deputy director or the director's
33 designee any of its powers and duties, whether ministerial or
34 discretionary, that are prescribed by law, except that the board may not
35 delegate its power or duty to make rules.

36 12. Reimburse board volunteers for travel and lodging expenses and
37 per diem subsistence allowances incurred while on public business for the
38 board. Reimbursement amounts shall not exceed those allowed under title
39 38, chapter 4, article 2.

40 13. In consultation with the conservation acquisition board,
41 develop a grant program and adopt guidelines for allocating and obligating
42 monies in the land conservation fund pursuant to section 41-511.23. The
43 guidelines shall include consideration of both qualification issues
44 relating to applicants for grants and issues relating to the proposed use

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1 of the grant money in a manner consistent with existing municipal, county
2 and regional land use plans.

3 14. Require volunteers who collect fees or interact with children
4 or vulnerable adults as defined in section 13-3623 within a state park to
5 submit a full set of fingerprints to the board ~~for the purpose of~~
6 ~~obtaining~~ TO OBTAIN a state and federal criminal records check pursuant to
7 section 41-1750 and Public Law 92-544. The department of public safety
8 may exchange this fingerprint data with the federal bureau of
9 investigation.

10 Enroll and engross to conform

11 Amend title to conform

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